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Governments Commence Organizational Work on Global Pact for Environment

6 September 2018

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STORY HIGHLIGHTS

The first day of the organizational session held in New York was dedicated to a general discussion, with some governments underscoring the need to avoid substantive topics.

The co-chairs aim to reach consensus by the end of the week on the timing, number and duration of the substantive sessions to be held in Nairobi, Kenya.

El Salvador called for enabling ways for New York-based missions to engage in the working group, such as circulating any documents at UN Headquarters and webcasting the Nairobi meetings.

5 September 2018: Governments debated options for a working group on “possible gaps in international environmental law and environment-related instruments,” discussing expectations for the Global Pact for the Environment and preferences regarding the upcoming substantive sessions. The ad hoc open-ended working group was created by the UN General Assembly (UNGA) in May 2018, by resolution 72/277 titled, ‘Towards a Global Pact for the Environment.’ The organizational session for the working group is convening from 5-7 September 2018, in New York, US. Following the organizational session and the issuance of a report from the UN Secretary-General, a series of substantive sessions will take place in Nairobi, Kenya, to produce recommendations for the UNGA. These recommendations could include the convening of an intergovernmental conference to adopt an international instrument.

The first day of the organizational session, on 5 September, was dedicated to a general discussion. Opening the meeting, Amal Mudallali, Permanent Representative of Lebanon and co-chair of the working group, emphasized that this meeting must lay the foundation for the substantive sessions without prejudging them. She underscored the need to reach

consensus by the end of the week on the timing, number and duration of the substantive sessions.

UNGA President Miroslav Lajcak said the Global Pact for the Environment can be an accelerator for implementation of the 2030 Agenda and the Paris Agreement on climate change, as well as enhance the coherence among international agreements and instruments. However, he stressed, “we cannot start from scratch, but need to base our work on what we already have.” He announced that the Secretary-General will circulate his report on gaps and overlaps in international environmental governance – which will be the basis for substantive discussions – “within the next few weeks.”

On the provisional agenda for the meeting, Egypt for the Group of 77 and China (G-77/China) stressed that no substantive issues should be discussed during this organizational meeting, and with China, Costa Rica, India, Madagascar and Philippines, called for support for developing country representatives’ participation in the working group. Together with Brazil, China, Ecuador and India, he highlighted that all of the Rio principles, including the principle of common but differentiated responsibilities (CBDR), comprise the basis for developing countries’ engagement in this process.

The EU called for allowing two or three months between the working group’s meetings, in order to consider the Secretary-General’s report, then have enough time for drafting, and subsequently for consulting among groups. She suggested that three substantive sessions might be needed. With regard to the duration of the sessions, she suggested three to five days, depending on the availability of financial resources. She called for an update on budgetary aspects, including on the options available for

funding, and on the support provided by the UN Environment Programme (UNEP). She mentioned that some EU member states have already made financial contributions for the Secretary-General's report and in support of developing countries' participation in the group. She also requested an update on the Secretary-General's report and its issuance date.

Madagascar, supported by New Zealand, emphasized the need for attention to the full participation of countries in special situations, especially the least developed countries (LDCs) and small island developing States (SIDS), when deciding the number and duration of the sessions. Colombia called for a "sufficient" number of sessions to discuss all the gaps in international environmental governance. Algeria suggested that sessions be four days long.

Philippines noted with concern that this organizational session takes place at the same time as the international session of the UNFCCC happening in Bangkok. Supported by the G-77/China, EU, Costa Rica, Japan, Monaco and Senegal, he emphasized the need to avoid such overlaps between the working group's sessions and other environmental meetings. Japan asked not to have a session at the end of June 2019.

El Salvador, supported by Thailand, suggested holding one of the substantive sessions back-to-back with the UN Environment Assembly (UNEA 4) in March 2019. Underscoring that there are countries without a permanent mission to UNEP, he called for enabling New York-based missions to engage in the working group, such as by circulating any documents also at UN Headquarters, and by webcasting the Nairobi meetings.

Costa Rica called for the international community to take advantage of the opportunity provided by the Global Pact to reaffirm its commitments to the environment and to be ambitious. China highlighted the potential of the Global Pact to strengthen global environmental governance. He also called for the Pact to uphold countries' sovereignty over their natural resources. Ecuador said the process should balance the three dimensions of sustainable development.

Argentina noted that the working group should identify obstacles in the implementation of existing environmental instruments, and, with Colombia, called for avoiding the duplication of discussions taking place in other processes. Monaco emphasized that this initiative should not prejudice or undermine any other existent international agreements and instruments, but should help improve coordination among them.

India called for the process to be transparent and driven by Member States. He noted that several gaps need to be addressed by the Pact, such as technical and financial gaps, and this must be reflected in the working group's agenda, along with CBDR. Brazil called for an agenda item on the Rio principles and their implementation.

The Holy See proposed an agenda item to connect the Global Pact discussions with the Intergovernmental Conference on an International Legally Binding Instrument under the UN Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ).

The working group continued the organizational session on [6 September](#), during which delegates focused on the agenda for the substantive

sessions. [[Co-Chairs' Letter](#)] [[SDG Knowledge story on adoption of resolution 72/277](#)] [[SDG Knowledge Hub story on appointment of co-chairs](#)] [[UNEP webpage for Global Pact process](#)][SDG Knowledge Hub sources]

SDGs

Goal 13 - Climate Action

Goal 14 - Life Below Water

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5–7 September 2018 | New York City, United States of America

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